
Factual Notice: Affirm's False Disclosures in CFPB Complaint #260717-35668593

6 messages

Chase Kinslow <chase.kinslow@gmail.com>

Mon, Aug 3, 2026 at 11:24 AM

To: "Marshall, Madison" <madison.marshall@morganlewis.com>

Cc: arjun.rao@morganlewis.com

Ms. Marshall and Mr. Rao,

I am writing to formally place Morgan Lewis on notice regarding a material factual falsehood submitted by your client, Affirm, Inc., in its official written response to CFPB Complaint #260717-35668593.

In its filing to federal regulators, Affirm stated:

"The loan required a down payment amount of \$26.16 that was submitted on July 7, 2026 leaving a residual loan amount of \$78.47 to be repaid. The down payment became a chargeback, which occurred when you disputed the transaction with your financial institution..."

This statement is demonstrably false and misrepresents internal system operations:

1. Zero Down Payment Authorized: I never initiated, authorized, or submitted a \$26.16 down payment on July 7, 2026.
2. Card Instrument Mechanics: Visa 3151 was my prior active Affirm virtual card, previously used for legitimate Shop Pay purchases, and it was the card used for the "down payment" your client references above.
3. Fraudulent Order Notification: On July 7, 2026, Shop Pay emailed me regarding an order from Perfume Empire for \$104.63 (associated Loan ID: O-NVK3N4E; Purchase ID: XQ8M-YX19). *See attachment*
4. Emergency Call & Department Transfers: I immediately called Affirm Customer Support. Over 49 minutes across calls, I repeatedly authenticated my identity at representatives' requests and endured transfers across at least 4 separate departments trying to reach the appropriate team to stop the transaction.
5. Refusal to Freeze & Zero Follow-Up: Frontline agents instructed me that the pending charge would have to clear before any administrative action could be taken. Affirm performed zero proactive outreach after the charge cleared, forcing me to initiate follow-up calls on July 9. Affirm eventually issued a replacement virtual card after the fact.
6. Virtual Card Processing & Zero Chargeback: The \$26.16 down payment processed as a normal transaction using my active Affirm virtual card (Visa 3151) on file at the time. I never authorized this purchase, submitted a manual down payment, or filed a bank chargeback with any financial institution.
7. False Regulatory Representation: Affirm falsely claimed to the CFPB that I submitted a down payment and then filed a bank dispute to reverse it. Affirm fabricated a story of consumer chargeback fraud to explain away the \$78.47 balance on a loan its own Order Review team cleared as fraudulent in writing on July 16.

Affirm fabricated a narrative of consumer chargeback fraud to cover up its own operational failure in allowing an unauthorized loan to process after receiving explicit telephonic notice.

This notice will be appended to my formal CFPB rebuttal and transmitted directly to the California Attorney General's Office.

Thanks, Chase

<https://chasekn43.github.io/Kinslow-Affirm-Dispute-Case-Study/>

 **Shop Pay - Fraudulent Installment Loan Information.pdf**
388K

Chase Kinslow <chase.kinslow@gmail.com>
To: Seamus Hughes <seamus@courtwatch.news>

Mon, Aug 3, 2026 at 11:47 AM

Seamus,

After a more thorough review of Affirm's CFPB response, I ascertained that their reply was based, intentionally or incompetently, on the factual disconnect detailed below in the formal notice transmitted to Madison Marshall and Arjun Rao at Morgan Lewis earlier today.

Thanks, Chase

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Chase Kinslow <chase.kinslow@gmail.com>
To: rob.bonta@doj.ca.gov

Mon, Aug 3, 2026 at 12:21 PM

Attorney General Bonta:

Please see below and advise.

Thanks, Chase

----- Forwarded message -----

From: **Chase Kinslow** <chase.kinslow@gmail.com>
Date: Mon, Aug 3, 2026 at 11:24 AM
Subject: Factual Notice: Affirm's False Disclosures in CFPB Complaint #260717-35668593
To: Marshall, Madison <madison.marshall@morganlewis.com>

[Quoted text hidden]

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Chase Kinslow <chase.kinslow@gmail.com>
To: nicklas.akers@doj.ca.gov

Mon, Aug 3, 2026 at 12:23 PM

Senior Assistant Attorney General Akers:

Please see below and advise.

Thanks, Chase

----- Forwarded message -----

From: **Chase Kinslow** <chase.kinslow@gmail.com>

Date: Mon, Aug 3, 2026 at 11:24 AM

Subject: Factual Notice: Affirm's False Disclosures in CFPB Complaint #260717-35668593

To: Marshall, Madison <madison.marshall@morganlewis.com>

CC: <arjun.rao@morganlewis.com>

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Nicklas Akers <Nicklas.Akers@doj.ca.gov>
To: Chase Kinslow <chase.kinslow@gmail.com>

Mon, Aug 3, 2026 at 9:32 PM

Thank you. Information can be submitted to our office via the webform at <https://oag.ca.gov/report>.

From: Chase Kinslow <chase.kinslow@gmail.com>

Sent: Monday, August 3, 2026 10:23 AM

To: Nicklas Akers <Nicklas.Akers@doj.ca.gov>

Subject: Factual Notice: Affirm's False Disclosures in CFPB Complaint #260717-35668593

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Chase Kinslow <chase.kinslow@gmail.com>
To: Nicklas Akers <Nicklas.Akers@doj.ca.gov>

Mon, Aug 3, 2026 at 10:36 PM

Thank you, Mr. Akers. I have formally submitted the complete complaint package and evidence documentation through the portal and attached a copy for your reference and review. Appreciate your direction.

Thanks, Chase

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Consumer Complaint.pdf

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